

Control Number

Justification Review Document  
for Limited Source Justification - FAR Part 8

Program/Equipment: The U.S. Army Aviation and Missile Command (AMCOM)  
Safety Office - Technical Support Services/Expediated Professional and  
Engineering Support Services (EXPRESS) Technical Domain.

Authority: Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 251, et. Seq) and Title 40 U.S.C 501, Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C). In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule (FSS) order provided that the original order was placed in accordance with the applicable FSS ordering procedures. The original order or Blanket Purchase Agreement (BPA) must not have been previously issued under sole-source or limited-sources procedures.

Amount:

Prepared by:

Typed Name: DSN:  
Title: Contracting Officer's Representative Date: 02/05/2025  
E-mail:

Contracting Officer:

Typed Name: DSN:  
E-Mail: Date Reviewed: 02/10/2025

Technical Representative:

Typed Name: DSN:  
Title: Contracting Officer's Representative Date: 03/06/2025  
E-mail:

Requirements Representative:

Typed Name: DSN:  
Title: Chief, Operational Safety Date: 03/06/2025  
E-mail:

[Redacted]

Control Number [Redacted]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name [Redacted]  
Signature: [Redacted]

Commercial: [Redacted]  
Date: \_\_\_\_\_

**Limited Source Justification – FAR Part 8**

1. Contracting Activity: Contracting Activity: Department of the Army, Army Contracting Command- Redstone Arsenal (ACC-RSA), CCAM-MLP, Redstone Arsenal, AL 35898-5000.

2. Description of Action: The U.S. Army Aviation and Missile Command (AMCOM), Safety Office requests approval to award a Time & Materials/Labor Hour (T&M/LH) contract modification with Operation and Maintenance (O&M), Aircraft Procurement Army (APA), and Research, Development, Test, and Evaluation (RDT&E) funding increase the ceiling and extend the Period of Performance (PoP) for a cost of [REDACTED] non-competitively, on a to Bastion Technologies, Incorporated, 7625 El Camino Real STE 330 Houston, TX 77058-3075, Commercial and Government Entity (CAGE) Code: 1PM71, Federal Supply Schedule (FSS) under the Expedited Professional Engineering Support Services (EXPRESS) Blanket Purchase Agreement (BPA) General Service Administration (GSA) Schedule Number 47QRAA19D007C Task Order (TO) W31P4Q-19-F-C005 (hereafter Task Order W31P4Q-19-F-C005). The original PoP dates of the TO are 12 September 2019 to 11 September 2024. In addition, services were extended for an additional six months IAW FAR 52.217-8, Option to Extend Services, which extended the PoP to 11 March 2025. Note that FAR 52.217-8 was evaluated at time of award. The requested ceiling and labor hours increase will cover technical support services during this extended timeframe, from 12 March 2025 through 11 March 2026.

The not-to-exceed (NTE) ceiling amount on this task order was adjusted to [REDACTED] on modification P00050 to correct the initial accounting error from P00001. Modification P00058 incorporated the use of FAR 52.217-8 and increased the ceiling by [REDACTED] to [REDACTED]. As of modification P00070, the current total obligated amount is [REDACTED] which leaves the remaining NTE ceiling balance of [REDACTED]. The estimated amount for a 12-month extension is [REDACTED] which is more than the remaining ceiling balance; the estimated labor hours for this extension is [REDACTED]. There are currently [REDACTED] hours remaining on contract the extension would require a ceiling increase of labor hours of [REDACTED]. This modification will cover the TO until 11 March 2026 and consist of a two-month base ([REDACTED] and [REDACTED] labor hours) and five two-month options. This will require an additional [REDACTED] to cover the 12-month extension. The new ceiling amount will increase from [REDACTED] to [REDACTED]. The anticipated award date for the follow-on order is on or before 18 December 2025. The modification to Task Order W31P4Q-19-F-C005, for technical support for AMCOM Safety Office, will allow continuous support while the follow-on requirement is being processed under the EXPRESS BPA contract and to allow for unforeseen delays with the award to include possible protests and litigation. This extension will also prevent disruption of services which will allow AMCOM Safety Office and ACC-RSA to continue the acquisition process for a new contract and continuing to provide the necessary critical support through the existing Safety Support Services task order. Failure to provide this support could impact the safety of soldiers and civilians worldwide. This contract provides

[REDACTED]

critical System Safety, Software Safety and Explosive Safety support and analysis for mission critical programs such as Hypersonic Missile, Tactical High Altitude Air Defense (THAAD), Guided Multiple Launch Rocket System (GMLRS), Patriot, PAC 3 MSE, IAMD Sentinel Radar Systems (Iron Dome), [REDACTED] and numerous Army Aviation and Missile Platforms. In addition, it will provide explosive safety support for all Explosive Operations at Redstone Arsenal which include support for Federal Bureau of Investigation, Federal Bureau of Investigation - Terrorist Explosive Device Analytical Center (TEDAC), Homeland Security, Alcohol, Tobacco and Firearms, Redstone Test Center, NASA, Combat Capability Development Command, Aviation Missile Command (AVMC) and Defense Intelligence A. The Explosive Safety Mission includes incoming and outgoing explosive shipments and Unexploded Ordinance (UXO) identification and disposal on Redstone Arsenal. It is anticipated that without the approval of this extension request, there will be a break in service. The impact of any break in service will cause a significantly reduced level of safety support creating potential risk of injury contributing to temporary or permanent disability or loss of life for the Warfighter, Civilians, DOD Contractors and non-combatants. National Security will be impacted as well as a result of weapon systems being fielded without proper safety oversight creating the risk of potential critical failures impacting mission success.

The original TO W31P4Q-19-F-C005 was competitively awarded on 12 September 2019 for a period of five years, through 11 September 2024, as a Small Business Set-Aside Competition for a T&M/LH contract ([REDACTED] labor hours, and a Not to Exceed (NTE) ceiling price of [REDACTED]). An LSJ was incorporate to increase the ceiling by [REDACTED] from [REDACTED] to [REDACTED] and labor hours by [REDACTED] from [REDACTED] to [REDACTED]. A 6-month extension was exercised, extending the PoP from 12 September 2024 through 11 March 2025 in the amount of [REDACTED]. Considering the exercise of the extension under FAR 52.217-8, the NTE ceiling price increased to [REDACTED].

**3. Description of Supplies/Services:** This task order provides technical support services for Material Release/Urgent Material Release for Aviation Assets, Missile Programs and Weapon Systems necessary to support the War Fighter. This period of performance extension and ceiling increase is to allow continuous uninterrupted technical support to AMCOM Safety Office. This contract also facilitates the safe research and development, testing, fielding, operation and demil/disposal of DOD weapon systems, munitions, hazardous material and support equipment, utilizing existing techniques and analysis, while developing new and innovative ways to ensure the safety of the soldiers, civilians' contractors and non-combatants. The cost for the 12-month extension for the USG are as follows: USG total cost [REDACTED] and [REDACTED] total hours.

A summary of the actions covered by this LSJ is provided below:

Control Number [REDACTED]

| Base and Options       | Period of Performance          | Labor      | Travel     | Hours      |
|------------------------|--------------------------------|------------|------------|------------|
| Base<br>(2-months)     | 12 Mar 2025 -<br>11 May 2025   | [REDACTED] | [REDACTED] | [REDACTED] |
| Option 1<br>(2-months) | 12 May 2025 -<br>11 July 2025  | [REDACTED] | [REDACTED] | [REDACTED] |
| Option 2<br>(2-months) | 12 July 2025 -<br>11 Sept 2025 | [REDACTED] | [REDACTED] | [REDACTED] |
| Option 3<br>(2-months) | 12 Sept 2025 -<br>11 Nov 2025  | [REDACTED] | [REDACTED] | [REDACTED] |
| Option 4<br>(2-months) | 12 Nov 2025 -<br>11 Jan 2026   | [REDACTED] | [REDACTED] | [REDACTED] |
| Option 5<br>(2-months) | 12 Jan 2026 -<br>11 Mar 2026   | [REDACTED] | [REDACTED] | [REDACTED] |
| Total                  |                                | [REDACTED] |            | [REDACTED] |

**4. Authority Cited:** Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 251, et. Seq) and Title 40 U.S.C 501. Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C). In the interest of economy and efficiency, the new work is a logical follow-on to an original FSS order not previously issued under provided that the original order was placed in accordance with applicable FSS ordering procedures. The original order or BPA was not previously issued sole-source or limited-sources procedures.

**5. Reason for Authority Cited:** This LSJ regarding Bastion Technologies Inc., 17625 El Camino Real STE 330, Houston, TX 77058-3075, CAGE Code 1PM71, supports the authority cited above in that this LSJ 12-month extension with increase in the TO ceiling is a logical follow-on to an existing FSS order, which was placed in accordance with the applicable FSS ordering procedures. The relationship between the original TO and the work associated with the period of performance extension and ceiling increase is logical because it is a continuation of the same, already existing effort (scope). The original TO W31P4Q-19-F-C005 was competitively awarded on 12 September 2019 for a period of five years, through 11 September 2024 as Small Business Set-Aside competition for a Time & Materials/Labor Hour contract. A six-month extension was exercised 12 September 2024 through 11 March 2025 in the amount of [REDACTED]. In the interest of economy and efficiency, it would be neither cost effective nor realistic, Bastion Technologies Inc., as the current contractor has the required technical expertise and current personnel in place that would eliminate duplication of efforts and any

unnecessary or additional costs that might be incurred if the modification was awarded to a new contractor. Bastion Technologies Inc's experience in executing the requirement is exemplary and it has been providing highly specialized technical support throughout the past fifteen years for the Army. To expect another contractor to perform during the brief interim period between the current TO end date and the award of the re-compete would be neither cost effective nor realistic. If this PoP extension is not approved, the impact of reduced safety support will create potential risk of injury contributing to temporary or permanent disability or loss of life for the Warfighter, Civilians, DOD Contractors and non-combatants. National Security will be impacted as well as a result of weapon systems being fielded without proper safety oversight creating the risk of potential critical failures impacting mission. The AMCOM mission is critical to national defense and the scope of these efforts are such that a contractor stop work would seriously impact fielding and sustainment. The contractor safety support and analysis are required to support material release of these AMCOM managed weapon systems. Failure to provide this support could impact success of the warfighter and the safety of soldiers and civilians worldwide who support these weapon systems. Therefore, it is not efficient to award this action to a new contractor as it is only required for a short time. It would be in the USG's best interest to continue services with Bastion to avoid any gaps in service.

#### **6. Efforts to Obtain Competition:**

a. Effective competition. ACC-RSA is currently in the pre-solicitation phase of the acquisition process reviewing the Contract Review Package (CRP) documents provided by the Customer for the re-compete follow-on action. However, until the re-compete is awarded and based on the above- mentioned facts, it is not practicable to utilize another source for this extension and ceiling increase since only Bastion personnel have the immediate in-depth knowledge and experience necessary to meet the TO requirements in the time available. There are no efforts to obtain competition for this ceiling increase at the current time. A Request for Information (RFI) will be conducted for the re-compete action once all CRP documents have been updated and finalized. In accordance with FAR 8.404(a), this action is exempt from pre-award synopsis requirements.

b. Subcontracting competition. FAR Clause 52.244-5, Competition in Subcontracting is included in the basic contract. Since the Subcontracting Plan is already prevalent on the BPA, it is not required at the TO level. All contract clauses currently contained in the BPA will still be in effect.

7. Actions to Increase Competition: The logical follow-on is a modification with the incumbent to allow continued technical support to AMCOM Safety Office. The TO is in the CRP development stage and will be competitively awarded under the EXPRESS Program to provide safety support to the AMCOM Safety Office and customers. The complete CRP for the re-compete follow-on will be submitted to ACC-RSA by February 2025 (as of to-date the CRP has been submitted to ACC-RSA). In the interest of economy, efficiency and safety, it would be neither cost effective nor realistic to expect another contractor to perform during the brief interim

[REDACTED]

period between now and the end of the current TO and the award of the re-compete. There are currently 11 potential respondents in the Technical R&D Domain. The new contract is estimated to be awarded on or before 18 December 2025.

8. Market Research: In accordance with FAR10.002, market research was conducted by the Contracting Officer's Representative (COR) for 47QRAA19D007C W31P4Q-19-F-C005. The Contracting Officer signed the Market Research Report/Commerciality (MRR-CD) on 11 February 2025. The AMCOM Safety COR utilized personal knowledge of the EXPRESS Program and contracted knowledge persons in the USG to review the Technical Prime BPA Holders that could possible complete this task. The market research revealed that it is not feasible to utilize another source for this effort in the necessary timeframe. There are Program expertise and personal knowledge were used to determine that no other source is capable of mobilizing in time to meet the requirement within the needed timeframe. Bastion personnel have the immediate in-depth knowledge and experience necessary to meet the TO requirements in the time available. In accordance with FAR 8.404(a), this action is exempt from pre-award synopsis requirements. FAR Part 12 will not be used in this effort; however, in accordance with FAR Part 8.402(a), GSA provides agencies with a simplified process for obtaining commercial supplies and services and the guidelines and clauses are contained in the EXPRESS BPA.

#### 9. Other Facts

a. Procurement history. The original Task Order W31P4Q-19-F-C005 was competitively awarded on 12 September 2019 for a period of five years, through to 11 September 2024 as a Small Business Set-Aside competition under the Technical R&D Domain, as a T&M/LH contract [REDACTED] labor hours, and a NTE ceiling price of [REDACTED]

- Modification P00050 dated 05 March 2024, incorporate approved Limited Source Justification (LSJ), to increase the ceiling by [REDACTED] and labor hours by [REDACTED] to [REDACTED] and [REDACTED] respectively.
- Modification P00058 dated 25 July 2024 invoked the 6-month extension for PoP till 11 March 2025.

b. Other facts: No other facts are available.

## 10. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: \_\_\_\_\_ Date: 06 March 2025

Typed Name: \_\_\_\_\_ Title: Chief, Operational Safety

## 11. Requirements Certification

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: \_\_\_\_\_ Date: 06 March 2025

Typed Name: \_\_\_\_\_ Title: Chief, Operational Safety

## 12. Fair and Reasonable Cost Determination:

I hereby determine that the modification to extend the period of performance represents the best value to the Government in accordance with FAR 8.405-6(c)(2)(v). Additionally, I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. Determination of fair and reasonable costs will be based on the GSA negotiated rates established under the basic contract awarded as a Small Business Set-aside Competition. Certified cost or pricing data will not be required based on the exception set forth in FAR 8.4.

Signature: \_\_\_\_\_ Date: 06 March 2025

Typed Name: \_\_\_\_\_ Title: Contracting Officer

## 13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: \_\_\_\_\_ Date: 06 March 2025

Typed Name: \_\_\_\_\_ Title: Contracting Officer

[Redacted]

Control Number [Redacted]

Approval

Based on the foregoing justification, pursuant to AFARS 5117.204 (e) and DFARS 217.204(e)(i)(B), I hereby approve the following extension and requested ceiling increase of this contract for services beyond 5 years with period of performance extension from 12 March 2025 to 11 March 2026 for the AMCOM Safety Office Technical Support services on other than full and open competition under Title III of the Federal Property and Administrative Services, Act of 1949 (41 U.S.C. 251, et Seq.) and Title 40 U.S.C. 501, Services for Executive Agencies, as implemented by FAR 8.405-6(a)(1)(i)(C); subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[Redacted Signature]

Signature: \_\_\_\_\_

Typed Name: [Redacted] Title: Command Advocate for Competition

[Redacted]